
Conclusion

Reflecting on the ethics of war and peace can be tough, and is fraught with dangers both conceptual and moral. We have seen this, in spades, throughout this book. Yet reflect on war's morality we must, as responsible individuals actively engaged in our world.

Active engagement, the press of events, and the weight of the stakes all make wartime decision-making doubly difficult. We thus appreciate, in its full force, the observation that rigorous contemplation of the justice of war—in all its phases—must be given *before* the decision to go to war is made. Contemporary wars tend to be fought much more quickly than prior wars—think of Iraq in 2003 versus Vietnam, or Afghanistan in 2001 versus the World Wars. Advances in technology and technique mean that the damage can now be done in weeks, as opposed to years. As decent people, citizens and decision-makers, we must examine all we can, and formulate firm, sensible and humane policies which cannot and will not be dislodged during someone's rush to war. Quick action may indeed be necessary, but it cannot be informed by rash decisions based on shoddy evidence, superficial values and temporary fears.

I have argued, throughout this text, that the best aid to contemplation of these issues is just war theory and, to a somewhat lesser extent, international law. My conviction here at the end remains the same, in spite of the substantial contributions of realism and pacifism. Just war theory is more *detailed* and *comprehensive* than either of its rivals, and it is *neither* too pessimistic *nor* too optimistic. Just war theory is *less extreme* and sweeping in its conclusions and *it bases its views on deep and sincerely considered values*, such as those of human rights, minimally just communities and the need to protect both from aggression. Aggression, sadly, is a common failing in human beings and the societies they form. Lots of people love telling other people what to do. When that desire for dominance becomes coupled with physical violence, it must be resisted for the sake of our rights and the integrity and

quality of our lives. Just war theory realizes this, and recognizes its moral importance. It is for all these reasons that just war theory is already so deeply ingrained in international law, as well as in our daily discourse and debate about the ethics of war and peace.

Today, those who we should, perhaps, be most suspicious about are those who argue that a new age has dawned—with the events of 9/11—and that we must now do without time-tested values and fight with an unprecedented ferocity and lack of restraint. As in other spheres of life—think of the high-tech economic bubble in the 1990s—these self-appointed gurus of “a brand new era” are all too often wrong. And what they are here proposing and allowing is too extreme, far too dangerous and verging at times even on savagery. Just war theory and international law remain hugely useful and insightful—indeed, unparalleled—aids to reflection and decision-making in connection with war, including the very latest and even future challenges. Until the advent of a genuinely more peaceful world, they will be in one form or another irreplaceable.

APPENDIX A

Sources on the Laws of Armed Conflict

Primary Sources

The best websites are below, where most of the major international laws and treaties on war can be down loaded for free and in full. Go to:

Air War College:

[<www.au.af.mil/au/awc/awcgate/awc-law.htm>](http://www.au.af.mil/au/awc/awcgate/awc-law.htm)

Avalon Project at Yale Law School:

[<www.yale.edu/lawweb/avalon/lawofwar/lawwar.htm>](http://www.yale.edu/lawweb/avalon/lawofwar/lawwar.htm)

Fletcher School at Tufts University:

[<www.fletcher.tufts.edu/multi/warfare.html>](http://www.fletcher.tufts.edu/multi/warfare.html)

International Humanitarian Law Research Institute:

[<www.ihlresearch.org.ihl>](http://www.ihlresearch.org.ihl)

University of Minnesota Law of Armed Conflict:

[<www1.umn.edu/humanrts/instree/auoy.htm>](http://www1.umn.edu/humanrts/instree/auoy.htm)

Thematic and Chronological Organization of the Primary Sources

2.1 *Jus ad Bellum*

Hague Convention I & III (1907)

The Kellogg-Briand Pact (1928)

Charter of the United Nations (1945) especially Articles 1, 2, 5, 6, 23–7 and 33–54.

United Nations General Assembly Definition of Aggression (1974)

Decision of the International Court of Justice on *Nicaragua vs. The United States of America* (1986)

(Chapters 1 and 3 of Reisman and Antoniou, eds. *Laws*. See section 3 for full citation.)

2.2 *Jus in Bello*

United States' Field Army Manual (or "Lieber's Code") (1863)
 Hague Conventions (1899–1907)
 Convention Regulating Poisonous Gases (1925)
 Convention Regulating Genocide (1948)
 Geneva Conventions (1949)
 Additional Protocol to the Geneva Convention (1977)
 Convention Regulating Cultural Property and Sites during Wartime (1954)
 United Nations General Assembly Resolutions Prohibiting Nuclear Weapons
 (1961 and 1973)
 Convention Regulating Aircraft Offences (1963), including Aircraft Seizure
 (1970) and Civil Aviation Safety (1971)
 Convention Regulating Biological Weapons (1972)
 Convention Regulating Diplomatic Agents during Wartime (1973)
 Convention Regulating Weapons Which Modify the Environment (1976)
 Convention Regulating Hostages (1979)
 Convention Regulating Excessively Injurious or Indiscriminate Weapons (1980)
 (Chapters 2, 4 and 6 of Reisman and Antoniou, eds. *Laws*.)

2.3 *Jus post Bellum*

Hague Convention IV (1907)
 United Nations Charter (1945) especially Articles 73–85 and 92–6.
 Nuremberg Judgments (1946)
 Tokyo Judgments (1946)
 Geneva Convention IV (1949)
 Treaty of Rome Establishing the International Criminal Court (1998)
 (Chapters 5 and 7 of Reisman and Antoniou, eds. *Laws*.)

Secondary Sources (include some primary documents, usually with editing and sometimes commentary)

I prefer, and have extensively used, W. Reisman and C. Antoniou, eds. *The Laws of War: A Comprehensive Collection of Primary Documents Governing Armed Conflict* (New York: Vintage, 1994). See also:

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APPENDIX B

Sources on Just War Theory

Website sources

“War” by Brian Orend for the Stanford Encyclopedia of Philosophy:

<plato.stanford.edu/entries/war>

Just War Theory.com by Mark Rigstad:

<www.justwartheory.com>

“Just War Theory” by Mark Rigstad for Wikipedia:

<http://en.wikipedia.org/wiki/Just_war>

“Just War Theory” by Alex Moseley for the Internet Encyclopedia of Philosophy:

<www.iep.utm.edu/justwar.htm>

“Resources in Just War Theory” by Larry Hinman:

<<http://ethics.acusd/applied/military/justwar.html>>

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INDEX

- accountability, 2, 44, 157
- Ackerman, Peter, 248
- Afghanistan, 192, 200, 211
 - disarmament, 197–98
 - human rights realization, 201
 - occupation of, 26, 74, 196
 - regime change, forcible, 197–202
 - subsistence, 201–2
- Age of Terror, 25–26
- aggression, 31–67, 74, 91
 - appeasement and, 45–46, 253
 - Core Principle on Aggression, 37–40, 255–56
 - defined, 32–33, 71, 76
 - drive for dominance and, 34, 267–68
 - forfeiture of state rights, 37–40
 - innocent aggressors, 257–59
 - punishment for, in just settlements, 164–65
- Aidid, Mohammed Farah, 174
- Alfred, 13
- Allawi, Iyad, 200
- al-Qaeda, 72–73, 198
 - as non-state threat, 69, 71, 78–79
 - Saddam Hussein and, 44, 49, 81–82
 - Taliban support of, 74, 168, 196
- Ambrose, 12, 14
- America. *See* United States of America (USA)
- Amin, Idi, 191–92, 216
- anarchism, 69
- anarchy, realist view of, 231–32
- Anscombe, Elizabeth (G.E.M.), 22, 254
- anticipatory attack(s), 74–83, 103n21
 - as anticipatory defence, 77–78
 - international authorization for, 54–55, 57
 - invasion of Iraq (2003), 78–83
- apologies, 170
- appeasement, 45–46, 253
- Aquinas, Thomas, 14–16, 19
- Arato, Andrew, 205
- Aristotle, 10–11, 12, 15, 19, 22, 39, 246
- armed humanitarian intervention, 17, 25, 26–27, 90–97
 - See also countries by name*
 - anti-imperialist position on, 95
 - contemporary experience with, 94–95
 - criterion for just intervention, 90–96
 - “in-and-out rule” of justified intervenors, 93–94
 - indirect intervention, 24, 192
 - non-intervention arguments, 18, 92–93
 - post-intervention reconstruction, 94
 - supreme emergencies and, 156, 158
- armed resistance, 45–46
- The Art of War* (Sun Tzu), 9
- atomic weapons, morality of, 22, 23
- Augustine, 11, 12–13, 14, 16, 46, 77–78
- authoritarian regimes, use of terrorism by, 69
- Axinn, Sidney, 24

- Bailey, Sydney, 23
 “balance of power”, 231–32
 Beitz, Charles, 239
 Benes, Edward, 45, 66n15
 benevolent quarantine, 96, 110–12
 detainment and, 26, 111, 131
Bhagavadgita, 9
 Bible, 9, 14
 bin Laden, Osama, 71, 113
 Bismarck, Otto von, 232
 Blair, Tony, 80
 blitzkrieg attacks, response to, 50–51
 booby traps, 120–21
 Bosnia, 25, 56, 92, 192
 case study, 98–101
 Dayton Accords, 91, 100, 101
 ethnic cleansing, 92, 99
 historical context, 98–99
 war crimes tribunals, 172, 174, 175
 Brandt, R.B., 23
 Britain, 100
 invasion of Iraq (2003), 78–83
 supreme emergency of World War II, 141–42, 148, 156, 193
 British Empire, 191
 Brocklehurst, Helen, 258–59
 Brownlie, Ian, 23
 Bull, Hedley, 224
 Bush, George, Jr.
 anti-terrorist legislation, 128
 invasion of Iraq (2003), 78–83, 96
 post-9/11 condition of supreme emergency, 144–45, 146
 post-invasion occupation of Iraq, 198–99
 UN Security Council authorization, 55
 Bush, George, Sr.
 Persian Gulf War (1991), 25, 47, 124, 182, 186

 Caesar, Julius, 11
 Calley, William, 173, 178
 Cambodia, 97
 Khmer Rouge “Killing Fields”, 89, 91, 191
 Canada, 85, 100, 131, 173
 Casas, Bartolome de las, 16

 case studies
 Bosnia, 98–101
 Persian Gulf War (1991) settlement, 181–86
 World War II, 62–65
 Castro, Fidel, 179
 Catholic Church, 24, 245
 Crusades and, 12, 13–14
 Cato, 11
 Charlemagne, 13
 Chesterman, Simon, 204
 China, Cultural Revolution of, 89
 chivalry, and *jus in bello*, 14, 15
 Christopher, Paul, 10, 25
 Churchill, Winston, 22, 57, 124, 164
 supreme emergency exemption, 140, 141, 142, 148, 149–51, 156
 Cicero, 11, 12, 14, 31
 civilian immunity, 112–15
 due care principle and, 116–17
 civilian rights, curtailment of, 73, 128–30
 civil liberties, 128, 130–32
 civil war(s), 2, 3, 19, 83–90
 armed intervention in, 86–87
 Bosnia, 98–101
 ethics of, 83–84
 ethnic hatred and, 47–48
 international war authorization
 process, 54–55
 minimally just political communities, 83–84
 peaceful separation (“no-fault divorce” analogy), 85–86
 US Civil War, 84–85
 Vietnam War, 87–90
 Clausewitz, Carl von, 3, 226
 Clinton, Bill, Operation Desert Fox, 183, 189n37
 Cold War, 24, 27, 98
 New Cold War, 27, 97
 nuclear deterrence and, 122–23
 similarities to war on terror, 128
 collective security, 24–26
 colonialism, 16–18, 190–91, 234
 Columbian cocaine cartels, 70–71
 communalism, 239–40

- communism, 89, 98
- comparative justice of cause, 43–44
- compensation, 165, 181
 - in Persian Gulf War (1991) settlement, 182, 206
 - post-war poll tax, 167–68
 - proportionality of, 166–68
 - punitive settlements, 206
- conscription, 132
- consequentialist pacifism, 245, 250–53
- Constantine, 12
- containment vs. reconstruction, 213–17
- Convention Banning Genocide (1948), 22
- Core Principle on Aggression, 37–40, 255–56
 - fairness argument, 38–39, 40
- crimes against humanity, 171, 173–75
- criminal gangs, as non-state threat, 70–71
- cross-border aggression, 54–55, 213–17
- Crusades, 12, 13–14, 230
- Crusading mentality, 230, 233, 242n19
- Cuba, 179, 192
- cultural chauvinism of rights-violators, 53
- Czechoslovakia, 45, 86
- Czech Republic, 86

- Dallaire, Romeo, 93
- Damrosch, Lori, 58
- Davis, G.S., 25
- Davis, Jefferson, 84
- Dayton Accords, 91, 100, 101
- defence, 76, 77
 - See also* other-defence; self-defence
- demilitarization, 165, 181, 204–5
 - military rehabilitation and, 168–69
- democratic citizenship, collective
 - responsibility of, 175–77
- democratic peace thesis, 53–54
- deontological pacifism, 245, 253–63
 - innocent aggressors, 257–59
 - lethal force, use of, 254–56, 259–63
 - rights-violation, 256–57
- detainment, 26, 111, 131
- Diem, Ngo Dinh, 87, 88, 89
- disarmament, 204–5
- discrimination, 25, 180
 - in bombing of Japan, 143
 - in deontological pacifism, 259–60
 - in Persian Gulf War (1991) settlement, 183–84
- disenfranchisement, 73, 131
- disproportionality, 60
- Dobbins Report (2003), 203, 207, 209, 216
- Doctrine of Double Effect (DDE), 15, 260, 266n31
 - criterion of, 115–18
 - supreme emergency exemption and, 146–57
- Dominican Republic, 192
- Donnelly, Jack, 226, 234
- Doyle, Michael, 53
- drug cartels, as non-state threat, 70–71
- due care principle, 116–17, 260–61
- DuVall, Jack, 248

- East Timor, 204, 209, 210
- economic sanctions. *See* sanctions
- Einstein, Albert, 52
- Eisenhower, Dwight D., 87
- elemental equality, as human right, 33–34
- Elshtain, Jean Bethke, 25
- emergency-regime legislation, 128, 130–32
- empires, 10–11, 16, 234
- equality, elemental, 33–34
- ethics, 24
 - consequentialist pacifism and, 250–53
 - rich nations compared to poor, 125–26
 - virtue ethics of teleological pacifism, 246–47
- ethnic cleansing, 92, 99, 101, 123
- executive branch of government, war
 - authorization process, 51–52
- external rules of *jus in bello*, 106–26
 - benevolent quarantine, 96, 110–12
 - civilian immunity, 112–15, 116–17
 - criticism of, 125–26
 - Doctrine of Double Effect (DDE), 115–18
 - due care principle, 116–17
 - legitimate targets, discrimination of, 106–7, 110, 114–15
 - moral equality of soldiers, 107–10
 - non-combatant immunity, 106–7, 110, 114, 116–17
 - prohibited weapons, 119–23
 - proportionality, 118–19, 122

- reprisals, 123–25
- transition to internal *jus in bello*, 126
- extremist outsiders, 69
- Ferguson, Niall, 191
- Fialia, John, 152
- “Field Army Manual”, 20
- Finland, invasion of, 45
- forced regime change, 19
- Ford, John, 22
- foreign policy, 232, 233
- Franco, Francisco, 22
- French Revolution, 19, 69, 208, 230
- Fullinwider, R.K., 23
- Gandhi, Mahatma, 248–49
- Gelven, Michael, 3, 239
- Geneva Conventions (1949), 4, 43
 - Abu-Ghraib prison tortures, 111, 112
 - domestic human rights, respect for, 127–36, 139n52
 - prisoners of war, 22, 96, 110–12
 - on prohibited weapons, 119–21
- Geneva Settlement (1954), 87
- genocide, 146, 234
 - convention against, 120, 123
 - ethnic cleansing and, 92, 98, 101, 123
 - The Holocaust, 23, 127, 146, 171
 - Rwanda, 93, 127
- Gentili, Alberico, 16
- Germany: Nazi Germany, 22, 45, 53, 62
 - aggression of, 63–64, 196
 - non-violent civil disobedience against, 248, 249
 - proportionality of response to aggression, 64–65
- Germany: post-war reconstruction, 192–95, 207, 218n7, 218n8
- Good Samaritan, parable of, 176
- government(s)
 - accountability of, 44
 - division of war power, 51–52
 - legitimate governance, 19, 35–37
 - public declaration of war by proper authority, 50–57
- Grant, Ulysses S., 149, 150
- Greco-Romans, 10–11, 246
- Grenada, 192
- Grotius, Hugo, 15, 17–18, 20, 21, 25
 - The Law of War and Peace*, 17, 24
 - non-combatant immunity, 141
 - outside interference, 90
 - proper punishment and, 22
- Guatemala, 192
- guerrilla warfare, 69–70, 102n8
- Guiliani, Rudy, 144
- Hague. *See* The Hague
- Hague Conventions, 21, 43, 186n2
 - on prohibited weapons, 119–21
 - public notification entitlement, 50
 - war crimes and, 171
- Haiti, 192
- Hare, R.M., 23
- Harris, Arthur, 154, 157
- Hartle, Anthony, 24
- Hirohito, 216
- Hitler, Adolf, 22, 45, 63–64, 216
- Hobbes, Thomas, 223
- Holmes, Oliver Wendell, 147
- Holmes, Robert, 245, 248, 259, 260
 - The Holocaust, 23, 127, 146, 171
- holy wars, 10
 - acceptability of as just cause, 15, 16, 18
 - bellum sanctum* vs. *bellum justum*, 13–14
 - Crusades as, 12, 13–14
 - religion and, 17–18
- humanitarian intervention. *See* armed humanitarian intervention
- human nature, 35, 154–55
- human rights
 - affordability of, 135
 - armed humanitarian intervention and, 90–96
 - as baseline requirements of political reasonableness, 237, 240
 - bombing of Japan as violation of, 143
 - civilian rights, 128–30
 - conscription and, 132
 - cross-cultural consensus, 53
 - cultural chauvinism of rights-violators, 53
 - curtailing of, 130–32
 - due process rights, suspension of, 131–32
 - “foundational five”, 33–34
 - genetic fallacy, 52

- human rights inflation, 129–30
- international criminal court and, 173
- jus ad bellum* and, 19
- jus in bello* and, 127–36
 - as justification of minimal justice, 52–54
 - just war theory and, 23
 - legitimacy of government and, 19
 - in minimally just societies, 62
 - as non-derogable, 128–30, 139n52
 - Paris Minimum Standards, 128
 - realism and, 236
 - realization of, 34, 36
 - right to vote, suspension of, 131
 - slavery as violation of, 84
 - of soldiers, 133–36
 - Universal Declaration of Human Rights (1948), 23
- Hussein, Saddam, 53, 103n25, 216, 232
 - connections to al-Qaeda, 44, 49, 81–82
 - containment of, 215
 - domestic human rights satisfaction, 97
 - invasion of Iraq (2003), 78–83
 - Persian Gulf War (1991), 40–43, 49, 57–58, 72, 119
 - Persian Gulf War (1991) settlement, 181–86
 - UN weapons inspection, 55, 80, 182, 183
 - war crimes tribunals, 175
- Ignatieff, Michael, 25, 103n21, 117
- imperial expansion, 10–11, 16, 234
- Indonesia, 192
- inherent rights, 32–33, 54–55
- internal regime change, 19–20
- internal rules of *jus in bello*, 106, 126, 127–36
- International Commission on Intervention and State Sovereignty (ICISS)
 - post-intervention reconstruction, 94, 210
 - sovereignty, intervention and, 91, 95
- international criminal court (ICC), 172–73
- international law, 24, 33
 - on armed humanitarian intervention, 90
 - codification, development of, 20–21
 - on discrimination in armed conflict, 106–7
 - due care principle and, 117
 - equal belligerent rights in, 108
- Geneva Conventions. *See* Geneva Conventions
- Hague Conventions. *See* Hague Conventions
- inherent rights from aggression, 32–33
- interpretation of, 55–56
- just war theory and, 23, 61–62
- Kellogg-Briand Pact (1928), 21
- moral rules of armed conflict in, 4
- on non-combatant immunity, 106–7, 258
- political sovereignty of states, 35
- on prohibited weapons, 119–21
- proper war termination, 160–62
- right intention and, 47
- on rights-bearing states, 36–37
- state consensus of, 37
- supreme emergency exemption, 157–58
- on targeting, 114
- territorial integrity of state, 35
- treaties and, 10, 18
- Treaty of Rome (1998), 25, 172
- United Nations Charter and, 4
- World War I and, 21
- International Treaty Banning Land Mines, 121
- intervention. *See* armed humanitarian intervention
- Iran-Iraq War, 40–41
- Iraq: 2003 invasion of, 78–83
 - as humanitarian intervention, 82, 96–97
 - insurgency post-invasion, 68–74
 - justness of, 47, 55, 96–97, 196
 - Operation Iraqi Freedom, 96
 - as pre-emptive self defence, 82, 96
 - pre-emptive war, justice of, 25
 - “scatter shot” approach of justification, 49–50
- Iraq: Persian Gulf War (1991), 25
 - Amnesty International special report, 41–42
 - just cause in, 40–43
 - as last resort, 57–58
 - motives and motivations, 47
 - Operation Desert Fox, 183
 - Operation Desert Shield, 42–43, 72
 - post-war sanctions, effect of, 168, 183–84, 186
 - settlement case study, 181–86

- treaty terms, 55, 72
- UN weapons inspection process, 80
- Iraq: post-invasion occupation, 26, 211
- Abu-Ghraib prison tortures, 96, 111, 112, 204
- analogies to Vietnam, 199
- armed insurgency, 198–99
- domestic legitimacy, 200–201
- Guantanamo Bay detainees, 111, 131
- human rights realization, 201
- international recognition of, 200
- Iraqi Provisional Authority, 200
- regime change, forcible, 197–202
- subsistence, 202
- US post-war policies, justness of, 196–97
- Islamic theocracy, 72–73
- New Cold War and, 27, 97
- Israel, 23, 73, 103n25, 108, 144
- Jaeger, Werner, 225
- Japan: Imperial Japan, 62
- See also World War II
- Japanese war crimes tribunals, 22, 63, 171, 188n22
- Japan: post-war reconstruction, 192–95, 207, 218n7, 218n8
- Jefferson, Thomas, 19
- Jesus, 9, 244, 245
- jihad*, 14
- Johnson, James Turner, 11, 24
- judicial branch of government
 - civil liberties and, 132–33
 - war authorization process, 51–52
- jus ad bellum*, 10, 31–104, 43
 - Charter of the United Nations (1945), 22
 - Greco-Roman rules of, 12
 - human rights and, 19
 - in international law, 55
 - intervention and, 25
 - jus in bello* and, 31–32
 - just cause, 12, 13, 15, 32–46
 - just cause amendments, 68–104
 - last resort, 12, 15, 241
 - moral issues, 20–21
 - non-classical wars, 68–104
 - probability of success, 18, 50, 58–59, 124, 241
 - proportionality, 59–61, 124–25, 241
 - public declaration of war by proper authority, 11, 15–16, 50–57
 - responsibility of political leaders, 31
 - right intention, 12–13, 15, 46–50
 - right to not be attacked, 16
 - shift towards multilateralism, 21
 - supreme emergency exemption and, 140–41, 149–51
 - war crimes, 170–71, 173–75
- jus in bello*, 10, 43, 105–39
 - additions to, 14
 - benevolent quarantine, 96, 110–12
 - civilian immunity, 112–15, 116–17
 - civilian rights, 128
 - classical virtues of soldiers, 12, 14
 - Convention Banning Genocide (1948), 22–23
 - Declaration of St. Petersburg, 20
 - discrimination, principle of, 259–60
 - Doctrine of Double Effect (DDE), 15, 115–18, 146–47
 - domestic human rights, respect for, 127–36
 - effect of technology on fighting environment, 26, 116–17
 - external rules. See external rules of *jus in bello*
 - “Field Army Manual”, 20
 - Geneva Conventions (1949), 22–23
 - Hague Conventions and, 21
 - harm, engaging in, 110
 - innocent aggressors, 258
 - internal rules, 106, 126, 127–36
 - in international law, 55
 - jus ad bellum* and, 31–32
 - legitimate targets, discrimination of, 106–7, 114–15, 143
 - “Lieber’s Code”, 20
 - “means *mala in se*”, 123
 - military, responsibility of, 32, 106, 177–79
 - moral equality of soldiers, 107–10
 - non-combatant immunity, 14, 15, 106–7, 116–17, 143, 258, 259–60
 - prisoners of war, 96, 110–12
 - prohibited weapons, 14, 15, 20, 21, 119–23
 - proportionality, 118–19, 122

- rehabilitation and, 212
- reprisals, 123–25
- right intention, 12–13, 15
- sanctions, 25
- supreme emergency exemption, 140–59
- surrender, offers of, 11, 15
- war crimes, 106, 170, 177–79
- jus post bellum*, 19–20, 160–89
 - apologies, 170
 - case study, 181–86
 - communication of victor's intentions
 - in settlement, 164
 - compensation, proportionality of, 166–68
 - discrimination, considerations of, 166–68
 - need for, 160–62
 - occupation issues and, 26
 - pacifism and, 264
 - political responsibility for, 162–66
 - reconstruction. *See* reconstruction
 - regime change, forcible, 190–219
 - rehabilitation, military, 168–69
 - rehabilitation, political, 169–70
 - sanctions, 168
 - settlement principles of just wars,
 - 164–65, 166, 180–81
 - war crimes tribunals, 170–79
 - war termination, 48
 - in World War II, 63
- Just and Unjust Wars* (Walzer, 1977), 24
- just cause, 12, 15, 32–46
 - amendments to, 68–104
 - anticipatory attacks, 74–83
 - appeasement, 45–46
 - Bosnia and, 99–100
 - comparative justice, 43–44
 - concept of “a wrong received”, 16–17
 - contentiousness of, 18
 - fabrication of evidence, 44
 - holy wars and, 15, 16, 18
 - human rights, 33–35
 - inherent rights from aggression, 32–33
 - last resort, 12, 27, 57–58, 63–64
 - objective just causes and, 12
 - Persian Gulf War (1991), 40–43
 - preventive war, 74–83
 - probability of success, 58–59
 - public declaration of war by proper
 - authority, 49, 50–57, 63
 - in response to aggression, 43–44
 - right intention, 46–50
 - state rights, 33–35
 - subjective just causes and, 13
- just conduct in war, 105–39
- justice after war. *See* *jus post bellum*
- justice in war. *See* *jus in bello*
- justice of war. *See* *jus ad bellum*
- just settlements, 161, 164–65, 166, 180–81
- just war(s)
 - bellum sanctum* vs. *bellum justum*, 13–14
 - constraints on conduct, 163–64
 - Crusades as, 12, 13–14
 - just settlement of, 161, 164–65, 166, 180–81
 - as normatively defensive, 76
 - nuclear weapons and, 122
 - post-war principles of *jus post bellum*, 162–81
 - status quo ante bellum*, 163
 - surgery analogy, 106, 165, 187n12
 - unjust wars, collective democratic responsibility in, 175–77
 - victor's justice, 162
 - vindication of rights, 62, 63, 163–65
- just war pacifism, 244
- just war theory, 9–30, 163–65
 - Aristotle and, 10–11, 12
 - Augustine and, 11, 12–13
 - Cicero and, 11, 12
 - codification, development of, 20–21
 - compared with laws of armed conflict, 55
 - constraints on conduct, 163–64
 - Crusading mentality of, 230, 233, 242n19
 - Dark Ages, 13–14
 - defined, 4–5
 - developments in, 12, 18, 23–26
 - early Christianity and, 12–13
 - Greco-Romans and, 10–11
 - holy wars and, 12, 13–14
 - human rights and, 24, 40
 - influence on foreign policy, 26–27
 - interconnectedness of categories, 48–50, 105–6, 162, 195–97, 262
 - jus ad bellum*. *See* *jus ad bellum*
 - jus in bello*. *See* *jus in bello*
 - jus post bellum*. *See* *jus post bellum*
 - just cause. *See* just cause

- last resort, 11, 12, 27, 57–58
- legitimate governance, 35–37
- pacifism and, 244, 261–63
- present day, 23–26
- principles of, 31–62
- proper authority, 11, 12, 27
- proper war termination, 160–62
- proportionality, 27
- public declaration, 11, 49
- realism and, 223–24, 240–41
- reconstruction, recipe for, 204–8
- as restraint of war, 249–50
- the Revolutionary era, 19–20
- right conduct in fighting, 11
- right intention, 27
- Roman Empire and, 11–13
- as scholastic doctrine, 19
- secularism of, 14, 15, 16, 18
- Spanish Conquest, 16–17
- state rights of morally legitimate governments, 36–37
- supreme emergency exemption and, 140–41
- surgery analogy, 106, 165
- on terrorism, 70
- Wars of Religion, 17–18
- World War I, 21
- World War II, 22–23
- Kant, Immanuel, 83, 105, 118, 179, 195, 216, 253
 - forcible regime change, 202
 - jus post bellum* and, 19–20
 - rights-respecting societies, 53–54
 - spying, 117
 - supreme emergency exemption, 151, 152, 154
 - war termination, 48
- Karadzic, Radovan, 99, 174
- Karzai, Hamid, 200
- Kellogg-Briand Pact (1928), 22
- Kennan, George, 224, 235
- Kennedy, John F., 87, 88, 179
- Kim Il Sung, 216
- King, Martin Luther Jr., 249
- Kissinger, Henry, 122, 224, 235
- Koran* (the), 9
- Korea, 51
- Kosovo, 25, 90, 92, 117, 123, 175
- Kuwait, Persian Gulf War (1991), 40–43
- Lackey, Douglas, 24
- Lactantius, 12
- Langan, John, 24
- last resort, 11, 12, 15, 27, 57–58, 241
 - Bosnia and, 100–101
 - supreme emergency exemption as, 156
 - in World War II, 63–64
- Latin America, US involvement in, 24, 192
- Law of War and Peace, The* (Grotius), 17, 24
- laws of armed conflict. *See* international law
- League of Nations, 21, 22
- legislative branch of government, war
 - authorization process, 51–52
- legitimate governance, 35–37, 52–54
- legitimate targets, discrimination of, 106–7, 114–15
- Liddell Hart, B.H., 160
- “Lieber’s Code”, 20
- Lincoln, Abraham, 131
- Locke, John, 19, 20, 23, 33
- Luban, David, 23
- MacArthur, Douglas, 193
- Machiavelli, 223
- MacMahan, Jeff, 77
- Marcus Aurelius, 11
- Marshall Plan, 194
- material links, in state sponsorship
 - of terrorism, 74
- material subsistence, as human right, 33–34
- McCarthy, Joe, 128
- McKenna, Joseph, 23
- “means *mala in se*”, 123
- Melian Dialogue* (Thucydides), 224, 228
- Melzer, Yehuda, 23
- military justice systems, 173
- Milosevic, Slobodon, 98–101, 175, 215, 216
- minimal justice
 - human rights and, 52–54, 97
 - state rights of minimally just societies, 35–37
- minimally just government(s)
 - civil war in, 83–84
 - international recognition of, 200

- minimally just regime(s), 202–8
- minimally just societies
 - as legitimate political communities, 62, 163
 - self-defence from aggression, 38–40, 261–62
 - standard for, 197
 - state rights in, 35–37, 99
- minority rights issues, 85–86
- Mladic, Ratko, 174
- Moore, J.N., 23
- moral integrity, 45
- moral issues
 - family ties analogy, 238–39
 - of *jus ad bellum*, 20–21
 - of state rights, 35–37
- morality
 - community roots of, 235
 - and concept of duty, 253–54
 - deontological pacifism and, 253–54
 - and laws of armed conflict, 17–18
 - in realism, 224–26, 227, 228, 232–33, 236
 - right intention and, 46
- morally prescriptive realism, 234–40
- Morgenthau, Hans, 223, 225
- motives and motivations, 46–48
 - in realism, 224–26, 236
- multilateralism, 21, 211
- multi-national societies, 3, 238
- Mussolini, Benito, 22, 216

- Nagel, Thomas, 23, 114, 149
- Napoleon, 107
- Narveson, Jan, 255
- Nash, William, 207
- nation, defined, 2
- national pride, 45
- nation-state(s), 2–3, 16, 238
- NATO (North Atlantic Treaty Organization), 91, 95, 99–101
- natural rights of citizens, 19
- natural rights of states, 32–33, 54–55
- Nazi Germany. *See* Germany: Nazi Germany
- neutrality, 45
- Ngo Dinh Diem, 87, 88, 89
- Nickel, James, 33–34, 129
- Niebuhr, Reinhold, 224
- Nietzsche, Friedrich, 229
- 9/11 terrorist attacks, 1–2, 25, 69
 - anticipatory attack, justification for, 77–78, 103n21
 - post-9/11 condition of supreme emergency, 144–45, 146
 - post-war poll tax and, 167–68
 - Taliban support of al-Qaeda and, 74, 168
 - terrorism as tactic, 68–70
- non-classical wars, 68–104
 - anticipatory attack(s), 74–83
 - civil war(s), 83–90
 - Iraq insurgency, 72–73
 - 9/11 terrorist attacks, 71–72
 - non-state threats, 70–71
 - terrorism and, 68–70, 73–74
- non-combatant immunity, 14, 15, 106–7, 114
 - bombing of Japan as violation of, 143
 - in deontological pacifism, 258, 259–60
 - due care principle and, 116–17
 - economic sanctions and, 58
 - terrorism and, 70
- non-intervention, 18, 92–93
- non-proliferation, 15–16, 169
- non-state threats, 25, 68–74
 - anticipatory attack against, 76–77
 - mercenaries, 70
 - terrorism and, 68–70
- non-violent civil disobedience, 247–49
- non-violent protest, 23
- non-violent resistance, 26, 264
- Norman, Richard, 245
- North Atlantic Treaty Organization. *See* NATO (North Atlantic Treaty Organization)
- nuclear arms, 121–23, 138n40, 142–43
 - See also* weapons of mass destruction (WMD)
- nuclear deterrence, 24, 122–23
- Nuremberg war crimes tribunals, 22, 63, 171–72
 - legacy of, 172–73
 - soldiers as responsible parties in war crimes, 107–10, 178–79
 - violations of *jus ad bellum*, 61
- Nyere, Julius, 192

- O'Brien, William, 23
 occupation law, 204
 Operation Desert Shield, 42–43, 72
 Origen, 12
 Orwell, George, 252
 Osgood, Robert, 23
 other-defence, 17, 18, 39–40
 as inherent right, 32–33, 54–55
 Persian Gulf War (1991), 40–43
 as war of law enforcement, 32, 43–44
 in World War II, 62
 outlaw states, 74
- pacifism, 4–5, 244–66
 as anti-war-ism, 244–45
 “clean hands policy”, 245–46
 conscription and, 132
 consequentialist pacifism, 245, 250–53
 deontological pacifism, 245, 253–63
 as disguised form of surrender, 248, 263
 Doctrine of Double Effect (DDE)
 and, 118
 Jesus and, 9, 244, 245
 just war theory and, 160, 244, 261–63
 non-violent civil disobedience,
 247–49, 263
 non-violent resistance, 26, 264
 religion and, 245, 263
 soldiers freedom of choice, 136
 teleological pacifism, 245, 246–50
 utopian commitments of, 247, 263
- Panama, 192
 Paris Minimum Standards, 128, 139n52
 peace, 9–10, 20, 160, 244
 peace settlements. *See* treaties
 and settlements
- Persian Gulf War (1991), 25, 47, 114
 Amnesty International special report,
 41–42
 compensation in, 182, 206
 just cause in, 40–43
 as last resort, 57–58
 Operation Desert Fox, 183
 Operation Desert Shield, 42–43, 72
 post-war sanctions, effect of, 168, 214
 proportionality of aggression, 119
 rehabilitation, 185
 settlement case study, 181–86
 soldiers freedom of choice, 135
 treaty terms, 55, 72
 UN weapons inspection process, 55,
 80, 182, 183
 war crimes tribunals, 213
- personal freedom, as human right, 33–34
 Phillips, Robert, 24
Philosophy and Public Affairs (journal), 23
 physical security, as human right, 33–34
 Pierce, Albert, 57–58, 208
 Plato, 10
 Pogge, Thomas, 107, 232, 238–39
 political communities, defined, 2
 political leaders, liability of, 173–75
 political rehabilitation, 165, 169–70
 political sovereignty, 34–35, 37–40, 56
 Pol Pot, 216
 post-war justice, ideal conception of,
 163–81
- post-war reconstruction, 19, 94
 See also jus post bellum
 civil society associations, 205–6
 constitution-building process, 205
 containment vs. reconstruction, 213–17
 educational reforms, 206
 exit strategy, 207
 leadership role in, 209–11
 multilateralism, integrity and, 211
 as neo-imperialism, 191
 post-war poll tax, 167–68, 181
 pro-rights reconstruction, 208–9, 264
 quality of governance, 209
 rebuilding of economy, 206
 recipe for, 204–8
 resistance to, 211–12
 security, provision for, 205
 widespread concrete benefits, 206–7
 World War II, 192–95
 “Pottery Barn Rule”, 196
 relative responsibility argument, 209–10
- pre-emptive strikes, 25, 54–55
 pre-emptive war, justice of, 25
 preventive war, 74–83
 prisoners of war, 111–12
 benevolent quarantine of, 22, 96, 110–12
 probability of success, 18, 50, 58–59, 241
 in Bosnia, 101
 of reprisals, 124

- in supreme emergencies, 156–57
 - in World War II, 64
- prohibited weapons, 14, 15, 20, 21, 119–23. *See also* weapons of mass destruction (WMD)
- proper authority, 11, 12, 27, 52
 - evolution of, 15–16
- proportionality, 27, 124–25, 241
 - in Bosnia, 101
 - cost-benefit comparisons in, 59–61
 - examples of, 61
 - of military rehabilitation, 169
 - nuclear weapons and, 122
 - proportionality of aggression, 118–19
 - in settlement of just wars, 180, 181
 - in World War II, 64–65
- proportionate response, 15
- pro-rights societies, 19–20
- public declaration of war by proper
 - authority, 11, 12, 15, 50–57, 100
 - domestic consent criterion, 50, 66n24
 - international authorization, 54–57
 - justification of minimal justice, 52–54
 - “scatter shot” approach of justification, 49–50
 - in World War II, 63
- Pufendorf, Samuel, 18, 19, 20, 25, 90
- punishment for aggression, 165, 170–79, 181
- Ramsey, Paul, 23
- Rawls, John, 34, 129, 140, 141, 148
 - on bombing of Japan, 142–43
 - human rights as baseline requirements
 - of political reasonableness, 237
 - on pacifism, 248
- Reagan, Ronald, 23, 24
- realism, 5, 223–43
 - bias in favour of powerful states, 234, 236
 - classical realists, 223
 - Cold War as fight for survival, 24
 - consequentialist pacifism and, 252
 - core propositions of, 223
 - criticisms of, 226–29, 231–34, 235–40
 - Crusading mentality of just war
 - theorists, 230, 233, 242n19
 - descriptive realism, 224–29
 - influence on foreign policy, 26–27
 - jus post bellum* and, 160
 - legitimate governance, recognition of, 35–37
 - modern realists, 223–24
 - morally prescriptive realism, 234–40
 - national interests and, 235, 236–38, 240
 - nuclear deterrence and, 123
 - prudential prescriptive realism, 229–34
 - on United Nations, 225
 - in United States, 234, 243n22
 - as unprincipled perspective, 234
 - view of war, 225–26, 230
- realpolitik*, 88, 142, 232
- reconstruction. *See* post-war reconstruction
- Regan, Richard, 25
- regime change, forcible, 19, 190–219, 242n19
 - consequences of, 186
 - historical examples, 190–95
 - international authorization for, 57
 - Iraq, 2003 invasion of, 44
 - political rehabilitation, 169–70
 - resistance to, 211–12
 - similarities between unjust regimes, 207–8
- regime change, internal, 19
- rehabilitation
 - in accord with *jus in bello*, 212
 - military rehabilitation, 168–69
 - in Persian Gulf War (1991) settlement, 185
 - political rehabilitation, 169–70
 - in settlement of just wars, 181
 - war crimes tribunals and, 213–14
 - religion, holy wars and, 13–14, 15, 16, 17–18
- religious documents, war references in, 9
- reprisals, 123–25
- right conduct in fighting, 11
- right intention, 12–13, 15, 27, 46–50
 - American intervention in Vietnam War, 88
 - Bosnia and, 100
 - domestic analogy, 48
 - linking of just war categories, 48–50
 - purity of, 46–48
 - in supreme emergencies, 156
 - in World War II, 63

- rights realization, 19
- rights-respecting societies, 53–54
- rights-vindication, 62, 63, 163–65, 180, 182
- rights-violation, 53–54, 62, 256–57
- Robespierre, 69
- rogue states, 74
- Roman Empire, 11–13, 191
- Roosevelt, Franklin D., 22, 131
- Rousseau, Jean-Jacques, 176
- Rumsfeld, Donald, 144, 198
- Russia (USSR)
 - Cold War, 24, 98
 - collapse of communism, 98
 - Czechoslovakia and, 61
 - Molotov-Ribbentrop pact (1939), 63
- Rwanda, 25, 123, 146, 156
 - armed humanitarian intervention in, 56, 92, 93, 94
 - comparison to Iraq, 97
 - historical context, 93
 - war crimes tribunals, 172, 175
- Ryan, John, 22
- Saladdin, 14
- sanctions
 - compensation and, 206
 - as morally questionable, 168
 - non-combatant immunity and, 57–58
 - pacifist use of, 247
 - sanctions-related deprivations of Iraqi people, 72, 183–84, 186, 214
- Saudi Arabia, 72
- “scatter shot” approach of justification, 49–50
- self-defence, 22, 27
 - Core Principle on Aggression, 37–40
 - as inherent right, 32–33, 54–55
 - as just cause for war, 10, 11, 17, 18, 43–44, 240
 - unilateralism and, 21
 - in World War II, 62
- self-justification of war, 43–44
- Sepulveda, 16
- Serbia, 91, 115, 117, 192
- Sharp, Gene, 248
- Sherman, William Tecumseh, 149, 150, 226
- slaves and slavery, 11, 16, 84–85, 234
- Slovakia, 86
- social peace, 36
- social recognition as a person, 33–34
- Socrates, 151, 152
- soldiers
 - child soldiers, 259, 266n31
 - classical virtues of, 12, 14
 - freedom of, 135–36
 - human rights of, 133–36
 - as innocent aggressors, 258, 266n31
 - jus ad bellum* violations, 109–10
 - jus in bello* violations, 177–79, 181
 - moral equality of, 107–10, 111
 - personal security in soldierly context, 133–34
 - social recognition of as persons, 136
 - subsistence as post-service assistance, 134–35
- Somalia, 25, 90, 92, 94
 - war crimes tribunals, 173, 174
- Soviet Union. *See* Russia (USSR)
- Spanish Conquest, justice of, 16–17
- Stalin, Josef, 45, 53, 89, 216
- state(s), 2, 73, 74, 113
 - justification for anticipatory attack, 76–77
 - legitimacy of, 19, 23, 97
- state rights
 - forfeiture of, 37–40, 62
 - human rights realization, 33–35, 215
 - minimal justice and, 35–37, 97
 - political sovereignty, 34–35
 - territorial integrity, 34–35
 - of United Nations member states, 35–37
- state sovereignty, 18, 25, 91–92
- status quo ante bellum*, 163
- Sterba, Jim, 24, 244
- Suarez, Francisco, 16
- Sudan, Darfur region of, 146
- Sun Tzu, *The Art of War*, 9
- supreme emergency exemption
 - accountability of victim country, 157
 - Churchill’s consequentialism, 149–51, 152, 154
 - criteria for, 145
 - inter-personal analogy, 150–51, 157
 - as last resort, 156
 - moral tragedy, prudential strategy, 154–57

- options regarding, 146–57
- skeptical perspective of, 147–49
- strict respect for *jus in bello*, 151–52
- Walzer's position on, 152–54
- surrender, offers of, 11, 15
- Taliban, the, 198, 215
- Islamic theocracy and, 72–73
- support of al-Qaeda, 74, 168, 196
- Tao-te-ching*, 9
- Teichman, Jenny, 24, 244
- teleological pacifism, 245, 246–50
 - criticisms of, 247–50
- territorial integrity, 34–35, 37–40, 56
- terrorism and terrorist organizations, 2, 69, 102n5
 - alleged terrorists, detainment of, 96, 111, 112, 131, 137n16
 - anti-terrorist legislation, 128
 - contexts of, 69–70, 102n8
 - just war theory and, 25–26
 - state sponsorship of, 73–74
 - terrorism as tactic, 68–70, 103n25
 - weapons of mass destruction (WMD), 145–46
- Tertullian, 12
- The Hague, international criminal court, 172
- Thirty Years War, 18
- Thucydides, 223
 - Melian Dialogue*, 224, 228
- torture, 26, 112, 123, 234
- treaties and settlements
 - apologies in, 170
 - development of international law, 10, 18, 20–21
 - International Treaty Banning Land Mines, 121
 - justice of, 19–20
 - just peace settlements, 161
 - principles for just settlement, 164–65, 166, 180–81
 - on prohibited weapons, 120
 - publicity of, 179–80
- Treaty of Rome (1998), 25, 172
- Treaty of Versailles (1919), 21, 161, 166, 180, 187n3, 206
- Treaty of Westphalia (1648), 18, 25
- Trojan War, 61
- Truman, Harry S., 22, 142–43
- Tucker, Robert, 23
- Uganda, 191–92
- unconditional surrender, 164
- unilateralism, 21
- United Nations, 24, 63, 252
 - Charter (1945), 4, 22, 54–55, 57, 236
 - compensation fund, 182
 - core purpose of, 55
 - international criminal court, 172–73
 - legitimacy of, 56–57
 - limits of, 240
 - Oil-for-Food program, 56, 184
 - peacekeeping forces, 56, 93, 99–100
 - post-conflict involvement, 210–11
 - realism and, 225
 - state rights of member states, 35–37
 - success rate of specialist agencies, 173
 - Trusteeship Council, 22
 - weapons inspection process, 55, 80, 182, 183
- United Nations' Security Council (UNSC), 32
 - authorization for humanitarian intervention, 90
 - authorization for regime-changing actions, 204
 - legitimacy of, 56–57
 - Persian Gulf War (1991) settlement, 182
 - war authorization process, 54–55
- United States of America (USA)
 - American Patriot Act, 128
 - American Revolution, 19
 - Bosnian intervention, 98–101
 - Civil War, 20–21, 84–85
 - Cold War, 24, 87, 128
 - governmental division of power, 51–52
 - indirect intervention of, 24, 192
 - invasion of Iraq (2003), 78–83
 - involvement in forcible regime change, 192
 - objection to international criminal court, 172
 - Pearl Harbor attacks, 22, 64
 - Persian Gulf War (1991), 25, 40–43, 47, 57–58, 72
 - post-9/11 condition of supreme

- emergency, 144–45, 146
 - post-war policies, justness of, 196–97
 - self-image as ethical force, 26–27
 - support of Israel, 73
 - Tonkin Gulf Resolution
 - (US Congress), 88
 - Un-American Activities Committee, 128
 - Vietnam War intervention, 87–90
 - war on terror, 27, 128
 - War Powers Congressional Resolution
 - (1973), 51
 - World War II post-war reconstruction, 192–95
- Universal Declaration of Human Rights
 - (1948), 23
- University of Salamanca, 16, 22
- unjust war(s), 47, 175–77
- Urban II, 14

- Vattel, Emmerich, 18, 19, 20, 25, 90
- victor's justice, 162
- Vietnam, in Cambodia, 91, 191
- Vietnam War, 23, 24, 87–90
 - American support for South Vietnam, 87–88
 - biological weapons used in, 121
 - collective democratic responsibility
 - in, 175
 - historical context, 87–88
 - justness of, 88–90
 - My Lai Massacre, 173, 178
 - Tonkin Gulf Resolution
 - (US Congress), 88
- virtue ethics, teleological pacifism and, 246–47
- Vitoria, Francisco de, 16–17, 18, 20, 25, 108
 - anticipatory attacks and, 77
 - on comparative justice of cause, 43
 - on soldiers freedom of choice, 135

- Walzer, Michael, 9, 59, 165
 - anticipatory attack as preventive war, 75, 77, 79
 - appeasement, 45
 - atomic bombing of Japan, 142–43
 - civilian immunity, 114
 - collective democratic responsibility, 175–76
 - comparative justice of cause, 43
 - compensation, 166–67
 - diplomacy and last resort, 57
 - Doctrine of Double Effect (DDE), 116
 - due care principle, 260–61
 - humanitarian rescue, 100
 - “in-and-out rule” of justified
 - intervenor, 93–94
 - intervention in civil wars,
 - 86, 91–92, 95–96
 - Just and Unjust Wars* (1977), 24
 - just wars, 233
 - legitimate act of war, 107
 - moral equality of soldiers, 107–10
 - non-violent resistance, 249
 - pacifism, 247
 - prohibited weapons, 119, 121–22
 - proportionality, 59–61, 65, 119
 - realists and realism, 224, 227, 228, 229
 - rehabilitation as institutional therapy, 212
 - reprisals, 124–25
 - right intention, 46
 - Saddam Hussein, 97
 - status quo ante bellum*, 163
 - supreme emergency exemption,
 - 140–41, 148, 149, 151, 152–54
 - on targeting, 114–15
 - unconditional surrender, 164
 - Vietnam War, 88
 - war's endings, 215
 - war crimes tribunals, 170, 175
 - widespread concrete benefits, 206–7
- war(s), 2, 3, 9–10, 15
 - accountability of governments, 44
 - cynicism about, 230, 233
 - effect of technology on, 26, 116–17, 267
 - fanatical moralism and, 230
 - governance and, 3, 85
 - holy wars, 10, 13–14, 15
 - just cause for, 43–44
 - just conduct in, 105–39
 - justice motive of, 233
 - as last resort, 57–58
 - national interests and, 235, 236–38, 240
 - as police action, 51
 - public declaration of by proper
 - authority, 50–57
 - of punishment, 18

- in realism philosophy, 225–26
 - of revolution within a state, 19–20
 - victor's justice, 162
 - war of law enforcement, 32
- war authorization process, 51–52, 54–55, 90, 204
- war crimes, 170–71, 173–75, 177–79
- war crimes tribunals, 22, 63, 170–79, 204
 - contemporary trials, 172–73
 - international criminal court, creation of, 172
 - military justice systems, 173
 - Nuremberg war crimes tribunals, 22, 61, 63, 171–72
 - as punishment for aggression, 165
 - rehabilitation and, 213–14
 - soldiers as responsible parties in war crimes, 107–10, 178–79
 - Tokyo war crimes tribunals, 22, 63, 171, 188n22
 - Treaty of Rome (1998), 25
- war on terror, 25–26, 27, 74, 144
- Wars of Religion, 17–18, 230
- war termination, 160–62, 180–81, 186n2
 - interconnectedness of just war categories, 48–50, 105–6, 162, 195–97, 262
- Wasserstrom, Richard, 24
- weapons of mass destruction (WMD), 44, 49
 - See also* prohibited weapons
 - anticipatory attack, justification for, 77–78
 - bombing of Japan, 142–43
 - destruction of Aggressor's WMD, 169
 - future use of war-time measures, 143–45
 - Iraq, 2003 invasion of, 72, 78–83
 - morality of, 22, 23
 - nuclear arms, 121–23
 - strategic planning and, 128
 - UN weapons inspection process, 182, 183
- Weber, Max, 2
- Wilson, Edmund, 225
- WMD. *See* weapons of mass destruction (WMD)
- Wolff, Christian, 19
- World War I, 44, 233, 251
 - Treaty of Versailles (1919), 21, 161, 166, 180, 187n3, 206
- World War II, 22–23, 180, 187n3, 230, 251–52
 - Allied bombings as terrorism, 102n5
 - case study, 62–65
 - comparative justice of cause and, 43–44
 - German apology for, 170
 - invasion of Czechoslovakia, 45
 - as just war, 24, 62
 - Molotov-Ribbentrop pact (1939), 63
 - Munich accords, 63
 - Pearl Harbor attacks, 22, 64
 - supreme emergency in, 141–42
 - as “The Good War”, 31
 - unconditional surrender in, 164
- World War II: post-war reconstruction, 192–95
- Yugoslavia, 48, 90, 91, 98